

**THE TERMINATION OF A MUSLIM MARRIAGE BY *TALAQ* AFTER
THE DIVORCE AMENDMENT ACT 1 OF 2024**

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Module: JUR5901

Assignment 3 (2026)

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1 Introduction

Muslim marriages were historically not recognised within South Africa's statutory marriage and divorce framework. Islamic law recognises several forms of dissolution, whereas South African law provides a court-based divorce system, and Osman-Hyder notes that this gap created uncertainty and exposed spouses, particularly women, to prejudice and abuse.¹ In *Women's Legal Centre Trust v President of the Republic of South Africa* ("WLCT") the Constitutional Court confirmed the constitutional deficiencies caused by the exclusion of Muslim marriages from the Divorce Act 70 of 1979.² Parliament responded with the Divorce Amendment Act 1 of 2024 ("the Amendment Act"), which commenced on 14 May 2024.³

Amina and Farouk married under Islamic law in 2012 and never registered the marriage under the Marriage Act 25 of 1961 or the Civil Union Act 17 of 2006. In March 2025 Farouk pronounced *talaq* before two witnesses. Amina disputes its effect, and Farouk seeks a declarator that it lawfully dissolved the marriage.

My thesis is that the Amendment Act does not declare *talaq* religiously invalid, and a court need not decide its religious validity. For civil-law purposes, however, the marriage subsists until a court grants a decree. Amina is entitled to pursue a civil divorce notwithstanding the *talaq*, and Farouk's declarator should be refused in the broad form in which he seeks it. Section 6 of the Amendment Act creates a real interpretative difficulty, but it is best resolved in Amina's favour.

2 The effect of *talaq* after the Amendment Act

2.1 Background

Courts recognised Muslim marriages only piecemeal. *Ryland v Edros* enforced contractual consequences of a Muslim marriage and rejected a blanket public-policy objection.⁴ In *Daniels v Campbell NO* the Constitutional Court held that "spouse" in the Intestate Succession Act 81 of 1987 and "survivor" in the Maintenance of Surviving Spouses Act 27 of 1990 include the surviving partner of a monogamous

¹ M Osman-Hyder, 'Termination of Muslim Marriages in the South African Legal Context: Understanding the Challenges' (2022) 33(2) *Stellenbosch Law Review* 251.

² *Women's Legal Centre Trust v President of the Republic of South Africa and Others* [2022] ZACC 23; 2022 (5) SA 323 (CC).

³ Divorce Amendment Act 1 of 2024; Government Gazette 50651 of 14 May 2024.

⁴ *Ryland v Edros* 1997 (2) SA 690 (C).

Muslim marriage, and in *Hassam v Jacobs NO* it extended that protection to a polygynous marriage.⁵ These cases protected surviving spouses but did not regulate divorce. *WLCT* held that the failure to recognise and regulate Muslim marriages infringed equality, dignity, children's rights and access to courts, and required legislative action.⁶

2.2 The Amendment Act

The Amendment Act defines a "Muslim marriage" as a marriage entered into or concluded in accordance with the tenets of Islam, so the parties' marriage qualifies.⁷ Amended section 3 of the Divorce Act provides that "[a] marriage, including a Muslim marriage, may be dissolved by a court by a decree of divorce".⁸ This accords with the common-law rule that a marriage ends only by death or court decree, so that civil status changes at one identifiable and provable moment.⁹

The Act does not, however, abolish *talaq*. Mujuzi points out that it is silent on whether a husband retains the power to terminate by *talaq*, and equally silent on a wife's *khul'* or *faskh*.¹⁰ The question is therefore not whether Farouk's *talaq* is valid in Islamic law (on which the schools differ, and which a court is ill-placed to decide), but whether it removes the marriage from the Divorce Act or ousts the court's divorce jurisdiction.

2.3 Section 6

Section 6 provides that the Act "applies to all subsisting Muslim marriages, including a Muslim marriage (a) which was terminated or dissolved in accordance with the tenets of Islam and where legal proceedings for the dissolution of the said Muslim marriage in terms of the Divorce Act ... have been instituted but not yet finalised; and (b) which subsisted as at 15 December 2014."¹¹

⁵ *Daniels v Campbell NO* 2004 (5) SA 331 (CC); *Hassam v Jacobs NO* 2009 (5) SA 572 (CC).

⁶ *WLCT* (n 2).

⁷ Divorce Amendment Act s 1.

⁸ Divorce Amendment Act s 2, amending s 3 of the Divorce Act.

⁹ J Heaton (ed) *The Law of Divorce and Dissolution of Life Partnerships in South Africa* (Juta 2014) pt 1.

¹⁰ JD Mujuzi, 'Dissolving a Muslim marriage in South Africa and the right to freedom from discrimination: The *talaq* v. the Divorce Amendment Act (2024) "routes" in the context of *H.A v N.A* (February 2025)' (2026) 26(1) *International Journal of Discrimination and the Law* 197.

¹¹ Divorce Amendment Act s 6.

Farouk's argument. The *talaq* ended the marriage under Islamic law before any proceedings were instituted. Paragraph (a) extends the Act to an Islamic termination only where proceedings are already pending, so the marriage is no longer “subsisting”.

The case law. This was the question in *H.A v N.A*, where the husband issued *talaq* before the wife instituted proceedings and argued that she was not a “spouse” entitled to Rule 43 relief. The court identified section 6 as central but declined to decide the question at the interlocutory stage, leaving it to the main action.¹² The case is therefore not authority that *talaq* ends a Muslim marriage for civil purposes, nor authority to the contrary. The Full Bench in *E.S v H.Z.A* has since held that the amended Act applies to Muslim marriages and that a prior *talaq* does not prevent a spouse from invoking the civil divorce process and Rule 43, “spouse” being read purposively.¹³ It also rejected an approach under which civil protection depends on which spouse acts first.

Why Amina's reading should prevail. First, paragraph (b) is a separate limb, and the 2012 marriage subsisted on 15 December 2014. Farouk cannot rely on (a) while ignoring (b). Secondly, for civil-law purposes a marriage subsists until a decree is granted (section 3), so it is still a “subsisting” Muslim marriage, and paragraph (a) is best read as confirming that an Islamic termination does not remove a marriage from the Act. Thirdly, any timing difficulty can be cured. If Amina now issues summons, proceedings are “instituted but not yet finalised” and (a) is satisfied even on Farouk's own reading; a rule that made the Act's protection depend on who reaches court first would be arbitrary. Fourthly, the amendments to sections 6, 7 and 9 of the Divorce Act presuppose judicial involvement and would be defeated if a husband could avoid them by pronouncing *talaq* first.

2.4 Application

Farouk's *talaq* was issued in March 2025, after commencement, so there is no retrospectivity problem. The court should refuse the declarator in its broad form. A declaratory order under section 21(1)(c) of the Superior Courts Act 10 of 2013 is discretionary, and it would be inappropriate to grant it to confirm a unilateral private act where the statute prescribes a judicial route and the other spouse opposes. The

¹² *H.A v N.A* (144907/2024) [2025] ZAGPPHC 121.

¹³ *E.S v H.Z.A* (A2023/062743) [2026] ZAGPJHC 262; 2026 (5) SA 140 (GJ).

court should state that any religious consequences of the *talaq* do not prevent it from determining the parties' civil status, and leave Farouk free to institute or counterclaim for divorce, relying on the *talaq* as evidence of irretrievable breakdown under section 4.

3 Constitutional implications of unilateral *talaq*

3.1 Equality (s 9)

A power of repudiation that is traditionally the husband's, with the wife confined to *khul'* or *faskh*, is differentiation on the listed grounds of sex and religion, presumed unfair under section 9(5). On the *Harksen v Lane NO* test, the impact on a historically disadvantaged group is decisive.¹⁴ *President of the Republic of South Africa v Hugo* stresses that impact,¹⁵ *Gumede v President of the Republic of South Africa* struck down the discriminatory proprietary regime of customary marriages,¹⁶ and *Mayelane v Ngwenyama* held that a status-altering act cannot be completed without the affected spouse's participation.¹⁷ These cases do not make Islamic law unconstitutional; they show that where a religious rule has civil consequences, those consequences must operate consistently with the Constitution.

3.2 Dignity (s 10)

Repudiation without notice, a hearing or reasons treats a spouse as the object of a unilateral decision, with practical consequences for the home, support and property. The correct question is not whether *talaq* is itself unconstitutional but whether giving it automatic and complete civil effect, without judicial oversight, would undermine the rights of the affected spouse. It would.

3.3 Religious freedom (ss 15, 31)

This is Farouk's strongest argument, and Mujuzi warns against reading the Act as if it abolished *talaq*.¹⁸ Section 15(3) contemplates recognition of marriages under religious law but requires consistency with the Constitution, and section 31(2) bars the exercise of community rights inconsistently with the Bill of Rights. *Christian*

¹⁴ *Harksen v Lane NO* 1998 (1) SA 300 (CC).

¹⁵ *President of the Republic of South Africa v Hugo* 1997 (4) SA 1 (CC).

¹⁶ *Gumede v President of the Republic of South Africa* 2009 (3) SA 152 (CC).

¹⁷ *Mayelane v Ngwenyama* 2013 (4) SA 415 (CC).

¹⁸ Mujuzi (n 10).

Education South Africa v Minister of Education recognises the importance of religious freedom while confirming that it exists within the constitutional framework.¹⁹ The right to practise one's religion does not include a right to alter another person's civil status without her participation. The court should therefore accommodate: the *talaq* is recognised as a religious act, and the civil consequences remain governed by the Divorce Act.

3.4 Access to courts and children (ss 34, 28)

Section 34 guarantees access to courts, and the 2024 amendments were designed to end the exclusion of Muslim spouses from them. Treating the *talaq* as barring Amina from court would deprive her of the very mechanisms designed to protect her. Section 28(2) makes children's best interests paramount, and the Amendment Act extended section 6 of the Divorce Act to children of Muslim marriages, whereas a unilateral *talaq* makes no provision for care, contact or maintenance.

3.5 Interpretation and limitation (ss 39(2), 36)

Section 39(2) requires an interpretation of section 6 that avoids recreating the exclusion identified in *WLCT*. If requiring the judicial route limits Farouk's religious freedom, the limitation is justified under section 36: its purpose (equality, dignity, access to courts and the protection of vulnerable spouses and children) is compelling, it is closely related to that purpose, and it is modest in extent because only the civil effect of the *talaq* is withheld. There is no less restrictive means, since unsupervised unilateral *talaq* would leave the vulnerability intact.

4 Practical and doctrinal challenges

The principal challenge is that two legal systems operate at once. Osman-Hyder shows that the absence of formal regulation exposed Muslim spouses to abuse and inadequate protection.²⁰ Moosa and Rautenbach, in Heaton's collection, discuss the integration of religious dissolution into the civil framework,²¹ and Amien highlights the tension between recognition, religious autonomy and the protection of Muslim

¹⁹ *Christian Education South Africa v Minister of Education* 2000 (4) SA 757 (CC).

²⁰ Osman-Hyder (n 1).

²¹ J Heaton (ed) *The Law of Divorce and Dissolution of Life Partnerships in South Africa* (Juta 2014) pt 3 (N Moosa and C Rautenbach).

women's rights, arguing that the task is to decide which consequences belong to the religious sphere and which to civil law.²²

Gender asymmetry. If the husband may terminate unilaterally while the wife must seek *khul'* (often involving return of the *mahr*) or *faskh*, treating *talaq* as ending all civil consequences would entrench unequal protection.

Dual status. A spouse may be divorced in one sphere and married in the other, as Amina is. The risks include a husband remarrying religiously while the first marriage subsists, and a wife being unable to remarry in her community if he withholds cooperation. Section 5A of the Divorce Act is the bridge: a court may refuse a decree until a religious barrier to remarriage is removed, so Farouk cannot obtain a civil decree and leave Amina in religious limbo.²³

Property. Section 7(3A) allows the court, on divorce of a Muslim marriage and absent agreement, to order the transfer of assets between the spouses, and section 7(4) requires the order to be just and equitable, having regard to direct and indirect contributions.²⁴ Section 7(5) allows the court to consider an agreement where the husband is party to more than one Muslim marriage.²⁵ These protections would be defeated if a unilateral *talaq* ended every civil consequence before the court could consider them. Heaton's treatment of the patrimonial consequences of divorce also notes the debate about the constitutionality of the court's redistribution power under section 7(3) for civil marriages.²⁶

Proof and doctrine. The existence of a marriage and of a *talaq*, and the school of law that governs, are difficult to prove, which is a further reason for the court to confine itself to civil effect and not adjudicate religious validity.

5 Counterarguments and the proper interpretation

Farouk will say the Act does not expressly abolish *talaq*, that section 15 protects religious practice, and that section 6(a) itself refers to marriages terminated under Islamic tenets, so Parliament intended to recognise the religious termination and add

²² W Amien, 'Judicial Intervention in Facilitating Legal Recognition (and Regulation) of Muslim Family Law in Muslim-Minority Countries: The Case of South Africa' (2020) 1(1) *Journal of Islamic Law*.

²³ Divorce Act s 5A; *Taylor v Kurstag* NO 2005 (1) SA 362 (W).

²⁴ Divorce Act ss 7(3A), 7(4), inserted or substituted by Divorce Amendment Act s 4.

²⁵ Divorce Act s 7(5)(aA), inserted by Divorce Amendment Act s 4.

²⁶ J Heaton (ed) *The Law of Divorce and Dissolution of Life Partnerships in South Africa* (Juta 2014) ch 4 (J Heaton).

civil remedies. Mujuzi's argument that reading the Act as abolishing *talaq* could raise its own equality and religious-freedom concerns shows the point has force.²⁷ But it does not follow that a *talaq* deprives Amina of her civil-law rights. Section 3 provides for dissolution by decree. Section 6(b) covers the 2012 marriage, which subsists until a decree. The Act's protections for children, property and forfeiture would be frustrated if a spouse could avoid them by pronouncing *talaq*. *E.S v H.Z.A* is post-amendment authority that a prior *talaq* does not bar civil divorce or Rule 43 relief. And section 39(2) requires the reading that promotes equality and access to justice while accommodating religion.

The court should therefore distinguish religious dissolution from civil dissolution. This best advances legal certainty, since the marriage ends by one public and provable act, a decree, on which pension funds, insurers and the Master can rely, and it respects religious freedom by leaving questions of religious validity to the religious community.

6 Remedies and order

Amina can issue summons for divorce, which also disposes of the section 6(a) argument; *S.W v A.L* illustrates that a *talaq* does not render divorce proceedings or Rule 43 relief moot.²⁸ She can claim interim maintenance and a contribution to costs under Rule 43, the importance of which was recognised in *H.A v N.A* and confirmed in *E.S v H.Z.A*. Her continued occupation of the home is protected by section 26(3) of the Constitution, which bars eviction without a court order, and Sonnekus's chapter in Heaton (ed) confirms that occupation claims on divorce are for the court.²⁹ She can also claim maintenance under section 7(2) and redistribution under sections 7(3A) and 7(4).

7 Conclusion

Amina and Farouk's marriage is a Muslim marriage within the amended Divorce Act and subsisted on 15 December 2014. The better view is that the *talaq* may retain religious significance but does not dissolve the marriage in civil law, which continues to subsist until a court grants a decree. Section 6 creates uncertainty, as *H.A v N.A*

²⁷ Mujuzi (n 10).

²⁸ *S.W v A.L* (2025/094930) [2025] ZAWCHC 440.

²⁹ J Heaton (ed) *The Law of Divorce and Dissolution of Life Partnerships in South Africa* (Juta 2014) ch 3 (JC Sonnekus).

shows, but it is best resolved by the text of sections 3 and 6(b), the remedial purpose of the Amendment Act, the Full Bench in *E.S v H.Z.A*, and section 39(2) of the Constitution. Farouk's application for a declaration that the *talaq* conclusively dissolved the marriage should be refused, Amina should be free to pursue divorce, interim relief and financial remedies, and the court should distinguish the religious validity of *talaq* from its civil-law consequences. That approach reconciles Islamic principles with the Constitution and protects equality, dignity, access to courts and legal certainty.

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